

Number 35 *of* 2019

PARENT'S LEAVE AND BENEFIT ACT 2019

REVISED

Updated to 1 April 2021

This Revised Act is an administrative consolidation of the *Parent's Leave and Benefit Act 2019*. It is prepared by the Law Reform Commission in accordance with its function under the *Law Reform Commission Act 1975* (3/1975) to keep the law under review and to undertake revision and consolidation of statute law.

All Acts up to and including the *Residential Tenancies Act 2021* (5/2021), enacted 30 March 2021, and all statutory instruments up to and including the *Family Leave and Miscellaneous Provisions Act 2021 (Commencement) Order 2021* (S.I. No. 148 of 2021), made 30 March 2021, were considered in the preparation of this Revised Act.

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An Act to entitle certain employees who are relevant parents in relation to a child to employment leave for the purposes of enabling them to provide, or assist in the provision of, care to the child; to entitle certain employees who are surviving parents in relation to a child to employment leave on the death of a relevant parent; to provide for the payment of parent's benefit to certain persons and, for that purpose, to amend the Social Welfare Consolidation Act 2005; for those purposes to provide for the consequential amendment of certain other enactments; and to provide for related matters.

[24*th October*, 2019]

Be it enacted by the Oireachtas as follows:

PART 1

Preliminary and General

Short title and commencement

1. (1) This Act may be cited as the Parent's Leave and Benefit Act 2019.

(2) This Act, other than *Part 5*, shall come into operation on such day or days as the Minister may appoint by order or orders either generally or with reference to any particular purpose or provision and different days may be so appointed for different purposes or different provisions.

(3) *Part 5* shall come into operation on such day or days as the Minister for Employment Affairs and Social Protection may appoint by order or orders either generally or with reference to a particular purpose or provision and different days may be so appointed for different purposes or different provisions.

Interpretation

2. (1) In this Act—

"Act of 1977" means the Unfair Dismissals Act 1977;

"Act of 1994" means the Maternity Protection Act 1994;

"Act of 1995" means the Adoptive Leave Act 1995;

"Act of 2005" means the Social Welfare Consolidation Act 2005;

"Act of 2010" means the Adoption Act 2010;

"Act of 2015" means the Workplace Relations Act 2015;

"Act of 2016" means the Paternity Leave and Benefit Act 2016;

"additional maternity leave" has the same meaning as it has in the Act of 1994;

"adjudication officer" means a person appointed under section 40 of the Act of 2015;

F1**[**...**]**

F1**[**...**]**

"birth certificate" means a document issued under section 13(4) of the Civil Registration Act 2004;

"certificate of placement" has the meaning assigned to it by section 13 of the Act of 1995;

"civil partner" shall be construed in accordance with section 3 of the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;

"cohabitant" shall be construed in accordance with section 172(1) of the Civil Partnership and Certain Rights and Obligations of Cohabitants Act 2010;

"contract of employment" means, subject to subsection (2) —

(a) a contract of service or apprenticeship, or

(b) any other contract whereby an individual agrees with another person, who is carrying on the business of an employment agency (within the meaning of the Protection of Employees (Temporary Agency Work) Act 2012), and is acting in the course of that business, to do or perform personally any work or service for another person (whether or not that other person is a party to the contract),

whether the contract is express or implied and, if express, whether it is oral or in writing;

"date of confinement" shall be construed in accordance with section 51(1)(b) of the Act of 2005;

"day of placement" means the day on which a child who is, or is to be, adopted is placed physically in the care of the F2**[**the relevant adopting parent**]** with a view to the adoption of the child or, in the case of an intercountry adoption effected outside the State where the child has not previously been placed in the care of the relevant adopting parent, the day on which the child has been so placed following the adoption;

"declaration of eligibility and suitability" has the same meaning as it has in the Act of 2010;

F1**[**...**]**

"employee", other than in *section 25*, means a person of any age, who has entered into or works under (or, where the employment has ceased, entered into or worked under) a contract of employment and includes a part-time employee and a fixed-term employee;

"employer", in relation to an employee—

(a) means the person with whom the employee has entered into or for whom the employee works under (or, where the employment has ceased, entered into or worked under) a contract of employment, subject to the